I

No...20024547
**OWNER/OCCUPIER**
*(delete as appropriate)*

**Ref: 5443c**
**TL9963 2515**
**Tel: 02079465678, E-mail: consents.farms@boltonfarms.co.uk**

# Wayleave Agreement

made the 24 day of Feb 2018

BETWEEN: **Dr DAVID BROWN** ("the Grantor") of CASTLE COTTAGE COLCHESTER CO1 1JR

**Eastern Power Networks pie** whose registered office is Newington House, 237 Southwark Bridge Road, London, SEl 6NP ("the Company") of the other part.

IT **IS AGREED** as follows:-

1.- **DEFINITIONS**

**"the Company"** includes its Subsidiaries, Associated Companies, successors and assigns

**"the Granter"** includes its tenants, licensees and employees

**"the Plan"** means the plan annexed hereto

**"the Property"** means the land shown on the Plan and situated at **Castle Cottage**

**"the Works"** means the works shown on the Plan and described in the Schedule

2.- **THE RIGHTS**

THE Grantor hereby grants consent for the Company:-

(a) To install, maintain, inspect, alter, renew, remove and retain the Works and to enter the Property at all reasonable times (or at any time in the case of emergency) with or without vehicles plant or machinery for such purposes

(b) To fell or lop in a woodman like manner any tree or hedge on the Property which obstructs or interferes with the Works

3.- **THE COMPANY'S COVENANTS**

THE Company shall:-

(a) Not cause any unnecessary damage or injury to the Property and shall take all reasonable precautions to avoid obstruction or interference with the use of any road or footpath sewer drain or watercourse that may be crossed by the Works

(b) Make good to the reasonable satisfaction of the Grantor any damage caused by or arising out of the execution of the Works. If for any reason any such damage cannot be made good the Company shall compensate the Grantor in an amount which has previously been approved by the Company

(c) Give to the Grantor not less than three days' previous notice (except in cases of emergency when as long notice as practicable shall be given) of the intended exercise of any of the rights conferred by Clause 2 above

(d) On the completion of this Agreement pay the Grantor a total one-off payment of **£150.00**

(e) At all times keep the Grantor indemnified against all losses, damages and expenses reasonably foreseeable at the date of this Agreement which he suffers or incurs by reason or on account of any breach of this Agreement including any negligent act or omission of the Company in connection with the execution or existence of the Works provided that this indemnity shall not extend to any such losses damages or expenses to the extent caused by the default of the Grantor

4.- **THE GRANTOR'S COVENANTS**

THE Grantor shall not:-

(a) Do or cause or permit to be done on the Property anything likely to cause damage or interference of any kind to the Works

(b) Make or cause or permit to be made any material alteration to the Property so as to interfere with or obstruct the access to the Works or so as to interfere with the support afforded to the Works by the surrounding soil without the prior written consent of the Company

5.- **TERMINATION**

This Agreement shall remain in force for a period of 15 years from the date hereof and thereafter until determined at the expiry of not less than twelve months' previous written notice given at any time by either party but without prejudice to the rights which the Company might exercise under the Electricity Act 1989

## THE SCHEDULE

(a) THE placing of an overhead electric line consisting of two, three or four conductors together with any ancillary apparatus across the Property in the line indicated in the approximate position shown on the Plan

(13) Tl-IE erection of **x** anc:l appliances for the purpose of supporting the al:!0[1].e R1entionec:l electric line in the apprmEiRlate positions inc:licatec:l on the Plan 13y a rec:l circle (pole) or 'T' (stay)

(c) THE placing of x unc:lergrounc:l cal3le(s) for transRlitting electricity at a freEtuency of SO hertz anc:l at a pressure of ...olts anc:l low [1].oltage telephone anc:l signalling cal3les such cal3le(s) to 13e in the approlEiRlate position inc:licatec:l. 13y a rec:l 13roken line. on the Plan.

THE parties hereto have set their hands the day and year first above written

SIGNED BY

(Grantor's Signature)...□ □b..□□.;□
***(please alsa sign plan)***

SIGNED BY

'□ 4D
(Agent'sSignature).....□
For and on behalf of Eastern Power Networks pie
**Tel: 03301 591841,**
**E-mail: consents.epn@ukpowernetworks.co.uk**




# WAYLEAVE

UK Power Networks

Barbara Pointon

| | | c.!ctlftCJ | Pro□ |
|---|---|---|---|
| Overhead Une | El-N | | |
| Overhead Une | HV | | |
| Overhead Une | LV | | |
| Underground Coble | EHV | | |
| Underground Coble | HV | | |
| Underground Coble | LV | | |
| H-Pole(s) | | O–O | |
| **Pole(s)** | | ● | ● |
| Stay(s) | | r-- | r-- |
| Substation | | | |
| Tower/Pylon | | | 181 |

Site: Castle Cottage, Colchester, CO1 1JR

Drawing No.: 5443c

Plotted On: 17/01/2018 Map Centre : TL 9963 2515

Scole : 1:400 Drown by : Kristina Green


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